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Section 3583(k) is difficult to reconcile with this understanding of supervised release. In particular, three aspects of this provision, considered in combination, lead me to think it is less like ordinary revocation and more like punishment for a new offense, to which the jury right would typically attach. *First*, § 3583(k) applies only when a defendant commits a discrete set of federal criminal offenses specified in the statute. *Second*, § 3583(k) takes away the judge’s discretion to decide whether violation of a condition of supervised release should result in imprisonment and for how long. *Third*, § 3583(k) limits the judge’s discretion in a particular manner: by imposing a mandatory minimum term of imprisonment of “not less than 5 years” upon a judge’s finding that a defendant has “commit[ted] any” listed “criminal offense.”

Taken together, these features of § 3583(k) more closely resemble the punishment of new criminal offenses, but without granting a defendant the rights, including the jury right, that attend a new criminal prosecution. And in an ordinary criminal prosecution, a jury must find facts that trigger a mandatory minimum prison term. *Alleyne*, 570 U. S., at 103.

Accordingly, I would hold that § 3583(k) is unconstitutional and remand for the Court of Appeals to address the question of remedy. Because this is the course adopted by the plurality, I concur in the judgment.

JUSTICE ALITO, with whom THE CHIEF JUSTICE, JUSTICE THOMAS, and JUSTICE KAVANAUGH join, dissenting.

I do not think that there is a constitutional basis for today’s holding, which is set out in JUSTICE BREYER’s opinion, but it is narrow and has saved our jurisprudence from the consequences of the plurality opinion, which is not based on the original meaning of the Sixth Amendment, is irreconcilable with precedent, and sports rhetoric with potentially revolutionary implications. The plurality opinion appears to have been carefully crafted for the purpose of laying the groundwork for later decisions of *much* broader scope.

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I

A

What do I mean by this? Many passages in the opinion suggest that the entire system of supervised release, which has been an integral part of the federal criminal justice system for the past 35 years, is fundamentally flawed in ways that cannot be fixed. Under the Sentencing Reform Act of 1984 (SRA), whenever a federal court sentences a criminal defendant to a term of imprisonment, the court may include in the sentence a term of supervised release, and under some circumstances supervised release is mandatory. 18 U. S. C. § 3583. When a court imposes a term of supervised release, the order must specify the conditions with which the defendant is required to comply, § 3583(d), and a judge may revoke supervised release and send a defendant back to prison if the judge finds by a preponderance of the evidence that the defendant violated one of those conditions, § 3583(e)(3).

Many statements and passages in the plurality opinion strongly suggest that the Sixth Amendment right to a jury trial applies to *any* supervised-release revocation proceeding. Take the opinion's opening line: "Only a jury, acting on proof beyond a reasonable doubt, may take a person's liberty." *Ante*, at 637. In a supervised-release revocation proceeding, a judge, based on the preponderance of the evidence, may make a finding that "take[s] a person's liberty," *ibid.*, in the sense that the defendant is sent back to prison. Later, after noting that the Sixth Amendment applies to a "criminal prosecution," the plurality gives that term a broad definition that appears to encompass any supervised-release revocation proceeding. The plurality defines a "crime" as any "'ac[t] to which the law affixes . . . punishment,'" and says that a "prosecution" is "'the process of exhibiting formal charges against an offender before a legal tribunal.'" *Ante*, at 641. These definitions explain what the terms in question mean in general use, but they were not formulated for the purpose

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of specifying what “criminal prosecution” means in the specific context of the Sixth Amendment. The plurality, however, uses them for precisely that purpose, and in so doing boldly suggests that every supervised-release revocation proceeding is a criminal prosecution. See *ante*, at 647–648 (“[A] ‘criminal prosecution’ continues and the defendant remains an ‘accused’ with all the rights provided by the Sixth Amendment, until a final sentence is imposed. . . . [A]n accused’s final sentence includes any supervised release sentence he may receive”).

Later statements are even more explicit. Quoting *Blakely v. Washington*, 542 U. S. 296, 304 (2004), out of context, the plurality states that “a jury must find beyond a reasonable doubt every fact which the law makes essential to a punishment that a judge might later seek to impose.” *Ante*, at 642 (internal quotation marks and alteration omitted). If sending a defendant found to have violated supervised release back to prison is “punishment,” then the thrust of the plurality’s statement is that any factual finding needed to bring that about must be made by a jury, not by a judge, as is currently done.

Also telling is the plurality’s response to the Government’s argument that *Apprendi v. New Jersey*, 530 U. S. 466 (2000), *Blakely*, and *Alleyne v. United States*, 570 U. S. 99 (2013), apply only to a defendant’s sentencing proceeding and not to a supervised-release revocation proceeding, which the Government describes as a “postjudgment sentence-administration proceedin[g].” Brief for United States 24. Rejecting this argument, the plurality huffs that “the demands of the Fifth and Sixth Amendments” cannot be “dodge[d]” “by the simple expedient of relabeling a criminal prosecution a . . . ‘sentence modification’ imposed at a ‘post-judgment sentence-administration proceeding.’” *Ante*, at 647. The meaning of this statement is unmistakable and cannot have been inadvertent: A supervised-release revocation proceeding is a criminal prosecution and is therefore gov-

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erned by the Sixth Amendment (and the Fifth Amendment to boot). And there is more. See *ante*, at 648 (“[A]ny accusation triggering a new and additional punishment [must be] proven to the satisfaction of a jury beyond a reasonable doubt”); *ante*, at 650 (“[A] jury must find *all* of the facts necessary to authorize a judicial punishment”).

Finally, while the plurality appears to say that the Sixth Amendment does not apply to parole revocation proceedings, see *ante*, at 651–652,¹ the plurality characterizes supervised release as “critical[ly] differen[t],” *ante*, at 651. This is so, the plurality explains, because parole relieved a prisoner from serving part of the prison sentence originally imposed, whereas a term of supervised release is added to the term of imprisonment specified by the sentencing judge. As I will explain, this difference is purely formal and should have no constitutional consequences. But for now the important point is the plain implication of what the plurality says: Parole was constitutional, but supervised release . . . well, that is an entirely different animal.

The intimation in all these statements is clear enough: All supervised-release revocation proceedings must be conducted in compliance with the Sixth Amendment—which means that the defendant is entitled to a jury trial, which means that as a practical matter supervised-release revocation proceedings cannot be held. In 2018, federal district courts completed 1,809 criminal jury trials. Administrative Office of the U. S. Courts, Judicial Business of the United States Courts (2018) (Table T–1). During that same year, they adjudicated 16,946 revocations of supervised release, *ibid.* (Table E–7A), and there is simply no way that the federal courts could empanel enough juries to adjudicate all those proceedings, let alone try all those proceedings in accordance with

¹ But even on this point, the plurality hedges, saying that “historic parole and probation revocation procedures . . . have *usually* been understood to comport with the Fifth and Sixth Amendments.” *Ante*, at 651 (emphasis added).

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the Sixth Amendment's Confrontation Clause. So, if every supervised-release revocation proceeding is a criminal prosecution, as the plurality suggests, the whole concept of supervised release will come crashing down.²

Where the plurality is headed is demonstrated—ironically—by its insistence that it is not going all the way—for now. The plurality writes: “[O]ur opinion,” *ante*, at 654, 655, does “not pass judgment one way or the other on § 3583(e)’s consistency with *Apprendi*,” *ante*, at 652, n. 7. Section 3583(e) sets out the procedure to be followed in *all* supervised-release revocation proceedings, so if that provision is not consistent with *Apprendi*, the whole idea of supervised release must fall. The strategy of the plurality opinion is only thinly veiled. It provides the framework to be used in ending supervised release. It provides no clear ground for limiting the rationale of the opinion so that it does not lead to that result. And then it says: We are not doing that *today*.

B

Is it possible to read the plurality opinion more narrowly? Can it be understood to condemn only one narrow statutory provision, namely, § 3583(k), which *required* the judge to send respondent Haymond back to prison for at least five years once the judge found that he had violated a condition of his supervised release by again possessing child pornography? On this reading, the only Sixth Amendment defect would be the mandatory minimum period of additional confinement that the statute imposes. There would be no problem if the judge had been free to choose the term, if any, of

²The plurality casts this argument as “echo[ing] an age-old criticism: Jury trials are inconvenient for the government.” *Ante*, at 655. Not at all. My only point is to say that if a questionable interpretation of the Sixth Amendment, see *infra*, at 669–683, would potentially lead to absurd results, that is an additional reason to suspect that something has gone awry.

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additional confinement. Does the plurality mean to go no further than this?

There are passages in the opinion that hint at this narrower interpretation. The plurality analogizes the mandatory minimum term of additional confinement required by § 3583(k) to the mandatory minimum term of initial imprisonment found to violate the Sixth Amendment in *Alleyne*, see *ante*, at 644–646. But the previously quoted statements pointing to a broader understanding remain, and the plurality does nothing to disavow that reading. To the contrary, the plurality doubles down, assuring us that this broader understanding would not be *too* disruptive. See *ante*, at 654–656.

A narrower interpretation of the plurality opinion is also contradicted by another important statement in the opinion. The plurality says that the maximum “lawful prison term” “reflected in the jury’s verdict” in respondent’s case was “10 years.” *Ante*, at 645. This statement is full of meaning because if 10 years is the maximum amount of time that respondent could lawfully be required to spend in prison on the basis of the jury’s verdict, there is a serious constitutional defect in the very design of the supervised-release system. That is so because the concept of supervised release is based on a fundamentally different conception of the maximum term of confinement authorized by a guilty verdict.

To understand this, it is important to understand the relationship between the system of supervised release and the old federal parole system it replaced. By abolishing parole and substituting supervised release, the SRA sought to retain the chief benefit of parole, *i. e.*, providing a transition period of monitoring to ensure that a prisoner who leaves prison has been sufficiently reformed so that he is able to lead a law-abiding life. At the same time, the SRA aimed to promote truth in sentencing and thus to eliminate a much-derided feature of the old parole system. See United States Sentencing Commission, Guidelines Manual ch. 1, pt. A (Nov.

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2018) (USSG). Under the parole system, a defendant who was convicted of a serious crime and given what seemed to be a stiff sentence could be and not infrequently was set free after serving only a fraction of the sentence originally pronounced. A prisoner was generally eligible for parole after serving only one-third of his sentence, and a sentence of life was treated as a sentence of 30 years.³ Therefore, a defendant sentenced to imprisonment for life could be out on the streets after only 10 years.

The SRA changed this, and now a defendant must serve the full term of imprisonment imposed at sentencing minus only a small deduction for good behavior in prison. USSG ch. 1, pt. A.1(3); 18 U. S. C. § 3624(b); *Barber v. Thomas*, 560 U. S. 474, 481–482 (2010). But to provide the same sort of transition period as was furnished under parole, a sentencing court may, and in some cases must, add a period of supervised release. See § 3583. The replacement of parole with supervised release changed the form of federal sentences but not their substance. Here is an example: A pre-SRA sentence of nine years' imprisonment meant three years of certain confinement and six years of possible confinement depending on the defendant's conduct in the outside world after release from prison. At least for present purposes, such a sentence is the substantive equivalent of a post-SRA sentence of three years' imprisonment followed by six years of supervised release. In both situations, the period of certain confinement (three years) and the maximum term of possible confinement (nine years) are the same. If anything, the defendant in the post-SRA case is treated more favorably because he is guaranteed release from prison after three years; his release at that point is not dependent on a decision by a parole board.

As this example shows, the concept of supervised release rests on the idea that a defendant sentenced to x years of

³ See O'Hara, Parole, 79 Geo. L. J. 1162, 1164–1165 (1991).

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imprisonment followed by y years of supervised release is really sentenced to a maximum punishment of $x + y$ years of confinement, with the proviso that any time beyond x years will be excused if the defendant abides by the terms of supervised release. And on this understanding, the maximum term reflected in the jury's verdict in respondent's case was not 10 years, as the plurality claims, but 10 years plus the maximum period of supervised release that the statute authorized.⁴

None of this matters in respondent's case because the sum of his original sentence (38 months) and the additional time imposed for violating supervised release (60 months) is less than 120 months, but adoption of the rule toward which the plurality opinion seems to point would make a big difference in many cases. Under that rule, a term of supervised release could never be ordered for a defendant who is sentenced to the statutory maximum term of imprisonment, and only a short period of supervised release could be ordered for a defendant sentenced to a term of imprisonment that is close to the statutory maximum. Moreover, in many cases, a judge, before beginning a supervised-release revocation proceeding, would have to anticipate the period of additional confinement that the judge would find appropriate if a partic-

⁴ In respondent's case that was life. See § 3583(k). Anything approaching that maximum would have been very harsh, but the judge in respondent's case did not impose such a term, and there are statutory restraints on the imposition of excessive additional terms. In determining the additional period to be ordered as a result of a supervised-release violation, a judge is required to take into account almost all of the factors that must be considered at sentencing. See § 3583(e). The Sentencing Guidelines provide recommended terms for particular violations. See USSG ch. 1, pt. B; *id.*, ch. 7. And the additional terms imposed in such cases are subject to review on appeal. See, e. g., *United States v. Wheeler*, 814 F. 3d 856 (CA7 2016); *United States v. Cordova*, 461 F. 3d 1184 (CA10 2006). If the Constitution restricts the length of additional imprisonment that may be imposed based on a violation of supervised release, the relevant provision is the Eighth Amendment, not the Sixth. Cf. *Lewis v. United States*, 518 U. S. 322 (1996).

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ular violation or set of violations was shown. For example, suppose that the statutory maximum term of certain confinement authorized by the offense of conviction is 10 years and that a prisoner is sentenced to and serves 8 years. Suppose that the term of supervised release imposed at the time of sentencing is five years. Before starting a supervised-release revocation proceeding in this hypothetical case, the judge would have to decide whether to rule out the possibility of sending the defendant back to prison for more than two years. Unless the judge was willing to do this—without knowing all the facts—the judge would have to convene a jury. It would be strange to put judges in that predicament.

The plurality appreciates the implication of its understanding of the maximum term of imprisonment authorized by a jury verdict in the post-SRA era. In footnote 4, the plurality says that it need not decide whether its interpretation of the Sixth Amendment leads to the results I have just outlined. See *ante*, at 646, n. 4. But here again, while formally reserving decision on this question, the opinion provides no theory that might permit what the SRA contemplates.

In short, under the plurality opinion, the whole system of supervised release would be like a 40-ton truck speeding down a steep mountain road with no brakes.

II

This should not have been a difficult or complicated case. I start with the proposition that the old federal parole system did not implicate the Sixth Amendment’s jury trial right. A parole revocation proceeding was not a “criminal prosecution” within the meaning of the Sixth Amendment, and revocation did not result in a new sentence. See, e.g., *United States v. Williams*, 558 F. 2d 224, 226 (CA5 1977); *Hyser v. Reed*, 318 F. 2d 225, 237 (CAD9 1963). When a prisoner was paroled, the Executive was simply exercising the authority conferred by law to grant the defendant a conditional release

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from serving part of the sentence imposed after a guilty verdict. *Mistretta v. United States*, 488 U. S. 361, 364–365 (1989).

Supervised release, for reasons already explained, is not fundamentally different and therefore should not be treated any differently for Sixth Amendment purposes. When a jury finds a federal defendant guilty of violating a particular criminal statute, the maximum period of confinement authorized is the maximum term of imprisonment plus the maximum term of supervised release. If a prisoner does not end up spending this full period in confinement, that is because service of part of the period is excused due to satisfactory conduct during the period of supervised release. Any other reading exalts form over substance in a way that has enormous consequences that cannot be justified on constitutional grounds.

Once this is understood, it follows that the procedures that must be followed at a supervised-release revocation proceeding are the same that had to be followed at a parole revocation proceeding, and these were settled long ago. At a parole revocation hearing, the fundamental requisites of due process had to be observed, but a parolee did not have a right to a jury trial. See, *e. g.*, *United States v. Carlton*, 442 F. 3d 802, 807 (CA2 2006); *United States v. Huerta-Pimental*, 445 F. 3d 1220, 1225 (CA9 2006). Neither the Confrontation Clause nor the formal rules of evidence had to be followed. See, *e. g.*, *Morrissey v. Brewer*, 408 U. S. 471, 488–489 (1972); *Gagnon v. Scarpelli*, 411 U. S. 778, 782, n. 5 (1973). Due process did not require proof beyond a reasonable doubt as is necessary at trial, see, *e. g.*, *DeWitt v. Ventetoulo*, 6 F. 3d 32, 36–37 (CA1 1993); *Whitehead v. United States Parole Comm'n*, 755 F. 2d 1536, 1537 (CA11 1985); *Mack v. McCune*, 551 F. 2d 251, 254 (CA10 1977), and the Double Jeopardy Clause did not apply, see, *e. g.*, *Kell v. United States Parole Comm'n*, 26 F. 3d 1016, 1020 (CA10 1994) (citing cases).

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For the past 35 years, it has been understood that the same rules apply at a supervised-release revocation proceeding. There is no good reason to depart from that understanding.

III

The plurality tries to suggest a reason by sprinkling its opinion with quotations from venerable sources, but all are far afield. (John Adams was not writing about the Sixth Amendment when he made a diary entry in 1771 or when he wrote to William Pym in 1766. See *ante*, at 640–641.) And the plurality makes no real effort to show that the Sixth Amendment was originally understood to require a jury trial in a proceeding like a supervised-release revocation proceeding. Of course, nothing like supervised release—or for that matter, parole—existed when the Sixth Amendment was ratified, so I will not attempt to make the affirmative case that the Sixth Amendment was specifically understood *not to apply* to such proceedings. But there is a strong case for the proposition that the terms of the Sixth Amendment and the original understanding of the scope of the jury trial right do not require the plurality’s interpretation. And our prior precedents emphatically refute that interpretation.

The Sixth Amendment limits the scope of the jury trial right in three significant ways: It provides “*who* may assert the right (‘the accused’); *when* the right may be asserted (‘[i]n all criminal prosecutions’); and *what* the right guarantees” (“the right to a . . . trial, by an impartial jury”). *Rothgery v. Gillespie County*, 554 U. S. 191, 214 (2008) (ALITO, J., concurring). The plurality can reach its conclusion only by ignoring these limitations.

A

I begin with who may assert the jury trial right. The text of the Sixth Amendment makes clear that this is “a right of the ‘accused’ and only the ‘accused.’” A. Amar, *The Bill of Rights* 111 (1998). The “accused” is an individual

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“[c]harged with a crime, by a legal process.” N. Webster, *An American Dictionary of the English Language* (1828); see also 1 J. Bouvier, *Law Dictionary* 50 (10th ed. 1860) (Bouvier Law Dictionary) (“[o]ne who is charged with a crime or misdemeanor”).

“At the founding, ‘accused’ described a status preceding ‘convicted.’” *Betterman v. Montana*, 578 U.S. 437, 443 (2016). Blackstone, for example, spoke of “the accused” in outlining the beginning of a criminal prosecution, see 4 W. Blackstone, *Commentaries on the Laws of England* 313 (1769), and spoke of “the offender” and “the criminal” after conviction, see *id.*, at 370, 371, 373, 378, 379. See also *id.*, at 279 (referring to “the party accused before he is condemned”). And “[t]his understanding of the Sixth Amendment language—‘accused’ as distinct from ‘convicted’ . . . —endures today.” *Betterman*, 578 U.S., at 443 (citing Black’s *Law Dictionary* 26 (10th ed. 2014) (defining “accused” as “a person who has been *arrested* and brought before a magistrate or who has been formally *charged*” (emphasis added))).

Despite the plurality’s suggestion otherwise, see *ante*, at 647–648, respondent was no longer the “accused” while he served his term of supervised release. To be sure, he was *formerly* the accused—at the time when he was duly indicted and tried for possession of child pornography. But after a jury convicted him and authorized the judge to sentence him to terms of imprisonment and supervised release, respondent was transformed into the convicted. And his status as such remained the same while he served his sentences, including during the proceeding to determine whether he had adhered to the conditions attached to the term of supervised release that was permitted by law and thus implicitly authorized by the jury’s verdict.

This is especially so given that respondent’s reimprisonment was not primarily a punishment for new criminal conduct. The principal reason for assigning a penalty to a supervised-release violation is not that the violative act is a

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crime (indeed, under other provisions in § 3583, the act need not even be criminal); rather, it is that the violative act is a breach of trust. USSG ch. 7, pt. A, intro. 3(b) (recommended reimprisonment terms are designed to “sanction primarily the defendant’s breach of trust,” not “new criminal conduct”). In other words, it makes little sense to treat respondent as the accused—*i. e.*, one charged with a crime—when he has been charged not with a crime, but with violating the terms of a jury-authorized sentence that flowed from his original conviction. The plurality’s extension of the jury trial right to respondent’s supervised-release revocation proceeding thus flounders from the start for the simple reason that respondent cannot easily be viewed as an “accused” in the conventional sense of the term.

B

It is similarly awkward to characterize a supervised-release revocation proceeding as part of the defendant’s “criminal prosecution.” A supervised-release revocation proceeding is not part of the criminal prosecution that landed a defendant in prison in the first place because “[a] ‘criminal prosecution’ . . . ends when sentence has been pronounced on the convicted or a verdict of ‘Not guilty’ has cleared the defendant of the charge.” F. Heller, Sixth Amendment to the Constitution of the United States 54 (1951). This follows from the early understanding that a “prosecution” concludes when a court enters final judgment. See, *e. g.*, Webster, An American Dictionary of the English Language (defining a prosecution as the “process of exhibiting formal charges against an offender before a legal tribunal, and pursuing them *to final judgment*” (emphasis added)); 2 The Universal English Dictionary 465 (J. Craig ed. 1869) (“the institution of legal proceedings against a person; the process of exhibiting formal charges against an offender before a legal tribunal, and *pursuing them to final judgment*” (emphasis added)); H. Holthouse, New Law Dictionary 344 (1847) (de-

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fining prosecution as “the means adopted to bring a supposed offender to justice and punishment by due course of law”); 2 Bouvier Law Dictionary 396 (“[t]he means adopted to bring a supposed offender to justice and punishment by due course of law”).

Our precedents reflect this understanding by defining the end of criminal prosecutions to be the entry of final judgment and imposition of sentence. In the Sixth Amendment context, for example, the Court has explained that “[c]riminal proceedings generally unfold in three discrete phases”: a pre-arrest phase, a charging phase that extends through trial, and a sentencing phase. *Betterman*, 578 U. S., at 441. As the Court described the final phase, the criminal proceeding ends “[a]fter conviction, [when] the court imposes sentence.” *Ibid.*; see also *id.*, at 443 (“And ‘trial’ meant a discrete episode after which judgment (*i. e.*, sentencing) would follow”). That description echoed the Court’s earlier characterization of the process, beginning to end: “criminal indictment, trial by jury, and judgment by court.” *Apprendi*, 530 U. S., at 478; see also *ibid.*, n. 4 (citing Blackstone to explain that “‘judgment’ by the court” was “the stage approximating in modern terms the *imposition* of sentence” (emphasis added)). And even outside the Sixth Amendment context, we have said that “[t]he general rule is that finality in the context of a criminal prosecution is defined by a judgment of conviction and the imposition of a sentence.” *Fort Wayne Books, Inc. v. Indiana*, 489 U. S. 46, 54 (1989).

In fact, two prior precedents—which the plurality effectively ignores—drew this exact line in stating that parole- and probation-revocation proceedings are not part of a criminal prosecution. Unless the plurality is willing to own up to attempting to overrule these precedents, its failure to engage with them is inexcusable.

The first is *Morrissey*, 408 U. S., at 472, a landmark case in which the Court held that due process requires a State to afford a parolee “some opportunity to be heard” before

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revoking parole. In considering that question, the Court “beg[an] with the proposition that the revocation of parole is not part of a criminal prosecution and thus the full panoply of rights due a defendant in such a proceeding does not apply in parole revocations.” *Id.*, at 480. The Court made clear that “[p]arole arises *after* the end of the criminal prosecution, including imposition of sentence.” *Ibid.* (emphasis added).

The second is *Gagnon*, 411 U. S. 778, where the Court considered whether a probationer has a right to appointed counsel prior to the revocation of probation. There, the Court reasoned that “[p]robation revocation, like parole revocation, is not a stage of a criminal prosecution.” *Id.*, at 782. Thus, in both contexts, the Court emphasized that parole- and probation-revocation proceedings are not part of a criminal prosecution. And that understanding carried significant consequences: It denied parolees and probationers the “full panoply of rights” to which a defendant is entitled in a criminal prosecution. *Morrissey*, 408 U. S., at 480.

Supervised-release revocation proceedings are not part of the defendant’s criminal prosecution for the same reasons. As we said in *United States v. Johnson*, 529 U. S. 53, 59 (2000), which the plurality all but ignores, “[s]upervised release has no statutory function until confinement ends,” which itself has no function until the criminal prosecution has ended. It follows, then, that “the revocation of [supervised release] is not part of a criminal prosecution.” *Morrissey*, 408 U. S., at 480.

The fact that *Morrissey* and *Gagnon* involved parole and probation, not supervised release, does not matter for present purposes. Cf. *ante*, at 642–643, 651–652. These cases did not turn on any features of parole or probation that might distinguish them from supervised release. Rather, those decisions recognized an obvious fact: The *administration* of a sentence occurs after a court *imposes* that sentence—*i. e.*, after the criminal prosecution has ended. That fact is

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equally true here. No matter what penalties flow from the revocation of parole, probation, or supervised release, the related proceedings are not part of the criminal prosecution.

In recognition of this, the courts of appeals for the past 35 years have overwhelmingly declined to apply the Sixth Amendment in supervised-release revocation proceedings, and they have done so precisely on the ground that these proceedings are not part of criminal prosecutions. This is true as to the jury trial right;⁵ the Speedy Trial Clause;⁶ the Confrontation Clause;⁷ and the right to counsel.⁸ As then-Judge Gorsuch succinctly put it not too long ago, “settled precedent” dictates that Sixth Amendment rights “d[o] not apply to supervised release revocation proceedings and the due process guarantees associated with these proceedings are ‘minimal.’” *United States v. Henry*, 852 F. 3d 1204, 1206–1207 (CA10 2017) (quoting *Morrissey*, 408 U. S., at 485, 489). And even the court below agreed: “Revocation of supervised release is not part of a criminal prosecution, so defendants accused of a violation of the conditions of supervised release have no right to a jury determination of the facts constituting that violation.” 869 F. 3d 1153, 1163 (CA10 2017).

⁵ See, e. g., *United States v. Carlton*, 442 F. 3d 802, 806–810 (CA2 2006); *United States v. Dees*, 467 F. 3d 847, 854–855 (CA3 2006); *United States v. Ward*, 770 F. 3d 1090, 1096–1099 (CA4 2014); *United States v. Hinson*, 429 F. 3d 114, 117–119 (CA5 2005); *United States v. McIntosh*, 630 F. 3d 699, 703 (CA7 2011); *United States v. Gavilanes-Ocaranza*, 772 F. 3d 624, 628–629 (CA9 2014); *Cordova*, 461 F. 3d, at 1186.

⁶ See, e. g., *Gavilanes-Ocaranza*, 772 F. 3d, at 628; *United States v. House*, 501 F. 3d 928, 931 (CA8 2007).

⁷ See, e. g., *United States v. Rondeau*, 430 F. 3d 44, 47–48 (CA1 2005); *United States v. Kelley*, 446 F. 3d 688, 690–692 (CA7 2006); *United States v. Hall*, 419 F. 3d 980, 985–986 (CA9 2005); *United States v. Ray*, 530 F. 3d 666, 667–668 (CA8 2008); *United States v. Ojudun*, 915 F. 3d 875, 888 (CA2 2019).

⁸ See, e. g., *United States v. Boultinghouse*, 784 F. 3d 1163, 1171 (CA7 2015); *United States v. Owen*, 854 F. 3d 536, 541 (CA8 2017); *United States v. Spangle*, 626 F. 3d 488, 494 (CA9 2010).

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Attempting to claim that a criminal prosecution actually extends through any period of supervised release, the plurality appears to arrive at an unintended destination. The plurality says (while mischaracterizing *Apprendi* and *Alleyne*, see *infra* this page and 676 that “a ‘criminal prosecution’ continues and the defendant remains an ‘accused’ with all the rights provided by the Sixth Amendment, until a final sentence is imposed.” *Ante*, at 647. That is exactly right. And the Court’s precedents emphatically say that a sentence is “imposed” at final judgment, *supra*, at 671–672, not again and again every time a convicted criminal wakes up to serve a day of supervised release and violates a condition of his release. That postjudgment conduct during the administration of supervised release, and any proceedings to adjudicate violations of the release conditions, necessarily occurs “after the end of the criminal prosecution, including *imposition* of sentence.” *Morrissey*, 408 U. S., at 480 (emphasis added).

C

The plurality attempts to pass off its reasoning as nothing more than the logical outgrowth of the *Apprendi* line of cases, but that is untrue. The plurality invokes these cases to support the idea that the Sixth Amendment cannot be evaded by “relabeling” of a criminal prosecution as a “‘sentence modification’” imposed at a “‘postjudgment sentence-administration proceeding.’” *Ante*, at 647; see also *ibid.* (claiming that *Apprendi* “recognized” how long a criminal prosecution continues). But nothing like that was involved in *Apprendi* or later related cases. Instead, the Court in those cases rejected what it saw as attempts to place the label “sentencing enhancement” on what, in its view, were essentially elements of charged offenses. See, e. g., *Blakely*, 542 U. S., at 306 (rejecting the idea that “the jury need only find whatever facts the legislature chooses to label elements of the crime, and that those it labels sentencing factors—no matter how much they may increase the punishment—may

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be found by the judge”). All of the cases in the *Apprendi* line involved actual sentencing proceedings, and thus there was never any question whether they arose in a “criminal prosecution.” That is not this case.

The plurality insists that it is simply applying *Apprendi*’s understanding of the jury trial right when it says that “a jury must find beyond a reasonable doubt every fact which the law makes essential to a punishment that a judge might later seek to impose.” *Ante*, at 642 (internal quotation marks and alteration omitted). But that is wrong.

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Since *Apprendi* itself, the Court has time and again endeavored to draw its understanding of the jury trial right from historical practices that existed at the founding and soon afterward. See *Apprendi*, 530 U. S., at 495 (looking to the “historical pedigree of the jury”); *Alleyne*, 570 U. S., at 111 (emphasizing that *Apprendi* looked to “common-law and early American practice”). As JUSTICES GINSBURG and SOTOMAYOR recently explained, courts applying *Apprendi* must “examine the historical record, because ‘the scope of the constitutional jury right must be informed by the historical role of the jury at common law.’” *Southern Union Co. v. United States*, 567 U. S. 343, 353 (2012) (quoting *Oregon v. Ice*, 555 U. S. 160, 170 (2009)); see also *id.*, at 167–168 (“Our application of *Apprendi*’s rule must honor the ‘longstanding common-law practice’ in which the rule is rooted” (quoting *Cunningham v. California*, 549 U. S. 270, 281 (2007))). Thus, where “[t]he historical record demonstrates that the jury played no role” in a particular context, *Ice*, 555 U. S., at 168, there is “no encroachment . . . by the judge upon facts historically found by the jury,” *id.*, at 169, and *Apprendi* does not govern.

In this case, the plurality can muster no support for the proposition that the jury trial right was extended to anything like a supervised-release or parole revocation proceed-

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ing at the time of the adoption of the Sixth Amendment. Supervised release was not instituted until 1984, and parole was unknown until the 19th century, so close historic analogues are lacking. But the nearest practices that can be found do not support the plurality.

Prior to and at the time of the adoption of the Sixth Amendment, convicted criminals were often released on bonds and recognizances that made their continued liberty contingent on good behavior. See L. Friedman, *Crime and Punishment in American History* 38–39 (1993); A. Hirsch, *The Rise of the Penitentiary* 7 (1992) (“Since courts in the eighteenth-century frequently demanded that offenders provide monetary sureties for future good behavior, convicts stayed put until they scraped together the requisite funds”). If a prisoner released on such a bond did not exhibit good behavior, the courts had discretion to forfeit the bond (a loss of property) or to turn the individual over to the sheriff (a loss of liberty) until new conditions could be arranged. See Friedman, *supra*, at 39. There is no evidence that there was a right to a jury trial at such proceedings, and the plurality does not even attempt to prove otherwise.

Corporal punishment of prisoners is also inconsistent with the plurality’s suggestion that a convicted criminal has the right to a jury trial before a punishment is imposed for legally proscribed conduct. See *ante*, at 641–642. Well into the 19th century, prisoners were whipped for misbehavior. See Friedman, *supra*, at 37, 77, n. *; M. Kann, *Punishment, Prisons, and Patriarchy* 120, 182 (2005). Virginia law, for example, provided that a prisoner could be punished “by stripes” if he were guilty of “profanity, indecent behaviour, idleness, neglect or willful mismanagement of work, insubordination, an assault not amounting to felony, or a violation of any of the rules prescribed by the governor.” Va. Code, Tit. 56, ch. 213, §22 (1849). Massachusetts law gave the warden “all necessary means” “to suppress insurrection, enforce obedience, and maintain order in the prison,” provided however

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“that no convict shall be punished . . . by more than ten stripes” without meeting certain conditions. 1828 Mass. Acts, ch. CXVIII, § 21, p. 829. And even at the turn of the century, courts entertained imposition of reasonable corporal punishment provided that it was authorized by lawfully adopted rule or regulation. See, *e. g.*, *State v. Nipper*, 166 N. C. 272, 277–280, 81 S. E. 164, 167–168 (1914); *Davis v. State*, 81 Miss. 56, 33 So. 286 (1902); *Werner v. State*, 44 Ark. 122, 131–132 (1884); *Cornell v. State*, 74 Tenn. 624, 624–631 (1881). There is no suggestion in these authorities that a jury finding of a violation was needed.⁹

Later, when parole and probation were introduced, courts, with the assistance of parole and probation officials, supervised the conditional release of parolees and probationers, and juries played no part in this process. See 4 Atty. Gen.’s Survey of Release Proc. 1 (1939) (Parole Survey); 2 *id.*, at 2 (Probation Survey).

⁹The plurality offers only a few tepid responses. First, the plurality appears to concede that a jury trial is unnecessary where penalties for postjudgment conduct are not *too* harsh. *Ante*, at 653. I suspect that the prisoners who endured corporal punishment would have challenged the plurality’s suggestion that their punishment was not that harsh. But in any event, a too-harsh standard—something that would appear to be more at home in an Eighth Amendment analysis—is hardly a principled way of determining whether a jury trial is constitutionally required. Second, the plurality suggests that my reasoning amounts to an extension of *Turner v. Safley*, 482 U.S. 78 (1987), because *Turner* addresses only the relaxation of a prisoner’s constitutional rights and the Court has “never extended it to the jury rights of persons out in the world who retain the core attributes of liberty.” *Ante*, at 654. But a convicted criminal on supervised release does not “retain the core attributes of liberty,” *ibid.*, and *Turner* is not implicated here because, as I have shown, the Sixth Amendment does not apply and thus the criminal has no jury trial right that *Turner* might relax. And once again, more notable than the plurality’s lack of real answers is its inability to point to any affirmative evidence that the jury ever played a historical role in the administration of previously imposed sentences.